

SENATE No. 405

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act stopping harm inflicted by the exploitation of life and development.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>1/22/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/25/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>3/27/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>6/30/2025</i>

SENATE No. 405

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 405) of Joan B. Lovely and Michael O. Moore for legislation to stop harm inflicted by the exploitation of life and development. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 314 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act stopping harm inflicted by the exploitation of life and development.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. This act shall be known as the SHIELD Act.

2 SECTION 2. The General Laws, as appearing in the 2020 Official Edition, are hereby
3 amended by inserting after chapter 119A the following chapter:-

4 CHAPTER 119B. CHILD SEXUAL ABUSE PREVENTION

5 Section 1. For the purposes of this chapter, the following words and phrases shall have
6 the following meanings:-

7 “Abuse”, an act involving a minor that constitutes a sexual offense under the laws of the
8 Commonwealth or any sexual misconduct between an adult and a minor under the care of that
9 individual.

“Abuse prevention policy”, a policy adopted by a school or youth-serving organization that supports the prevention of sexual abuse by outlining a code of conduct for employees that identifies inappropriate behavior between a teacher and a minor or student.

“Age-appropriate”, topics, messages and teaching methods suitable to particular ages or age groups of children and adolescents, based on developing cognitive, emotional, and behavioral capacity typical for the age or age group

“Employee” means a person defined as such in section 148B of chapter 149.

“Job performance” includes, but is not limited to, abilities, attendance, attitude, awards, demotions, disciplinary actions, duties, effort, knowledge, promotions, skills, and. in the case of a former school employee, the reasons for separation.

“Mandated reporter” means a person defined as such in section 21 of chapter 119.

“Minor”, a person under 18 years of age.

“School”, a public or private educational institution that serves minors in the Commonwealth, including an entity with the mission of providing activities and socialization for minors that is operated by such an educational institution.

“Sexual misconduct”, any action directed towards or with a minor, regardless of the age of the minor that is designed to promote a romantic or sexual relationship with the minor. Such acts include, but are not limited to:

(a) Sexual or romantic invitation;

(b) Dating or soliciting dates;

(c) Engaging in sexualized or romantic dialogue;

(d) Making sexually suggestive comments;

(e) Self-disclosure or physical exposure of a sexual, romantic or erotic nature; or

(f) Any sexual, indecent, romantic or erotic contact with a minor or student.

“Youth-serving organization”, a public or private entity with the mission of providing activities and socialization for minors; provided, however, that this shall not include such an entity operated by a public or private educational institution that serves minors in the Commonwealth.

Section 2. School Abuse Prevention Policies

(a) Every school shall adopt the abuse prevention policy as set forth by the department elementary and secondary education. The abuse prevention policy shall support the prevention of sexual abuse by outlining a code of conduct for employees that identifies inappropriate behavior for teachers and students. The policy shall also detail the institution’s procedures for meeting its obligations under section 51A of chapter 119.

(b) The department of elementary and secondary education, in consultation with the office of the child advocate, the department of children and families and the department of early education and care shall create the abuse prevention policy for schools across the Commonwealth.

(c) The department shall review the model abuse prevention policy at least once every 5 years to ensure it includes up-to-date information and best practices.

Section 3. Youth Serving Organizations Abuse Prevention Policies

(a) Every youth serving organization shall adopt the abuse prevention policy as set forth by the department children and families. The abuse prevention policy shall support the prevention of sexual abuse by outlining a code of conduct for employees that identifies inappropriate behavior for teachers and students. The policy shall also detail the institution's procedures for meeting its obligations under section 51A of chapter 119.

(b) The department of children and families, in consultation with the office of the child advocate, the department of elementary and secondary education and the department of early education and care shall create the abuse prevention policy for schools across the Commonwealth.

(c) The department shall review the model abuse prevention policy at least once every 5 years to ensure it includes up-to-date information and best practices.

Section 4. School Employee Sexual Abuse Prevention Education

(a) All mandated reporters employed by a school shall receive instruction biennially on the prevention, identification, and reporting of child sexual abuse. This instruction shall include comprehensive training and information to help schools and their personnel:

(1) recognize, appropriately respond to and prevent behaviors violating the school abuse prevention policy;

(2) recognize, appropriately respond to, and prevent sexually inappropriate, coercive, or abusive behaviors between minors' served by schools;

(3) identify the ways in which the behavioral and verbal cues for sexual abuse differ from those of other abuse and neglect;

(4) support the healthy development of students and minors, and the building of protective factors, to mitigate against their sexual victimization by adults or by other minors;

(5) respond to disclosures of sexual abuse or reports of behaviors violating the abuse prevention policy of adults or minors in a supportive and appropriate manner that meets mandated reporting requirements under section 51A of chapter 119;

(6) seek out community resources available to assist schools in the prevention, identification, reporting and referral to treatment of cases involving the sexual abuse or exploitation of minors.

(b) The department of elementary and secondary education shall use tested, research-based instructional materials that meet the requirements of subsection (a). The mode of delivery for the trainings may include in-person or e-learning instruction.

(c) The department of elementary and secondary education shall adapt, implement and maintain an existing evidence-based online or in-person training course to satisfy the requirements of subsection (b); provided, however, that if the department cannot find an existing program to adapt to this purpose, then the department shall create, implement, maintain and update such a training program; provided further, that such training program shall be provided to schools at no cost.

(d) For each training required under this section, each school shall maintain records that include the names of the individuals within their school.

(f)The department of elementary and secondary education shall make the abuse prevention policy publicly available on its website.

Section 5. Youth Serving Organization Employee Sexual Abuse Prevention Education

(a) All mandated reporters employed by a youth serving organization shall receive instruction biennially on the prevention, identification, and reporting of child sexual abuse. This instruction shall include comprehensive training and information to help youth serving organizations and their personnel:

(1) recognize, appropriately respond to and prevent behaviors violating the youth serving organization abuse prevention policy;

(2) recognize, appropriately respond to, and prevent sexually inappropriate, coercive, or abusive behaviors between minors' served by youth serving organization;

(3) identify the ways in which the behavioral and verbal cues for sexual abuse differ from those of other abuse and neglect;

(4) support the healthy development of minors, and the building of protective factors, to mitigate against their sexual victimization by adults or by other minors;

(5) respond to disclosures of sexual abuse or reports of behaviors violating the abuse prevention policy of adults or minors in a supportive and appropriate manner that meets mandated reporting requirements under section 51A of chapter 119;

(6) seek out community resources available to assist youth serving organizations in the prevention, identification, reporting and referral to treatment of cases involving the sexual abuse or exploitation of minors.

(b) The department of children and families shall use tested, research-based instructional materials that meet the requirements of subsection (a). The mode of delivery for the trainings may include in-person or e-learning instruction.

(c) The department children and families shall adapt, implement and maintain an existing evidence-based online or in-person training course to satisfy the requirements of subsection (b); provided, however, that if the department cannot find an existing program to adapt to this purpose, then the department shall create, implement, maintain and update such a training program; provided further, that such training program shall be provided to schools and youth-serving organizations at no cost.

(d) For each training required under this section, each youth serving organization shall maintain records that include the names of the individuals within their youth serving organization.

(f)The department of children and families education shall make the abuse prevention policy publicly available on its website.

Section 6. Youth Sexual Abuse Education

(a) Every school that serves elementary or secondary school students and every youth-serving organization shall provide age-appropriate instruction to help students and children served by such schools, programs, or youth-serving organizations:

(1) Recognize and report inappropriate behavior in adults that may indicate that they pose a sexual risk to minors;

(2) Recognize and report inappropriate behaviors in other children that may indicate that they pose a sexual risk to children and youth;

(3) Learn how to develop healthy and respectful interpersonal relationships, including appropriate body boundaries and privacy rules;

(4) Learn how to communicate effectively to trusted adults any concerns they have about body boundaries or privacy violations;

(5) Learn about available school and community resources to prevent and respond to sexual abuse; and

(6) Recognize and understand the consequences of false, inaccurate or exaggerated reports and the importance of children reporting honestly to the best of their ability.

(b) The department of elementary and secondary education shall use tested, research-based instructional materials that meet the requirements of subsection (a) and assist schools in implementing the program. The mode of delivery for the trainings may include in-person or e-learning instruction. For each training required under this section, each school shall maintain records that include the names of the individuals within their school who participated in the training during that year. The department of elementary and secondary education shall make the abuse prevention policy publicly available on its website.

(c) The department of children and families shall use tested, research-based instructional materials that meet the requirements of subsection (a) and assist youth serving organizations in implementing the program. The mode of delivery for the trainings may include in-person or e-learning instruction. For each training required under this section, each youth-serving

153 organization shall maintain records that include the names of the individuals within their
154 program who participated in the training during that year. The department of children and
155 families shall make the abuse prevention policy publicly available on its website.